

Privacy policy

We take user privacy seriously and want you to be informed of our practices and your rights. This privacy policy ("**Privacy Policy**") outlines the privacy practices of and EAST FUSION FZCO, a Dubai company with License No. 5342, headquartered at Building A1, Dubai Digital Park, Dubai Silicon Oasis, Dubai, United Arab Emirates ("**Company**", "**us**", "**we**", or "**our**") in connection with your ("**you**" or "**your**") access to or use of our mobile app (the "**Application**"), and related services (collectively, the "**Services**") or when you engage with us in other ways. By accessing or using our Services, you acknowledge that you have read and understood this Privacy Policy. If you have any questions or concerns about this Privacy Policy or privacy practices in general, please contact us at support@scannerly.com.

Identity and contact details of the data controller

The data controller responsible as per the General Data Protection Regulation ("**GDPR**") of the European Union and other data protection regulations is:

EAST FUSION FZCO, a Dubai company

License No. 5342,

Building A1, Dubai Digital Park, Dubai Silicon Oasis, Dubai, United Arab Emirates

What does this Privacy Policy cover?

This Privacy Policy outlines how we collect, use, and disclose (or in other words – how we process) personal information of users, both online and offline. For EU users – under "personal information" you should understand "**personal data**".

Please also see our Terms and Conditions, which apply to your access and use of our Services that you purchase or sign up for on Scannerly.

Unless otherwise expressly stated, this Privacy Policy does not apply to any third-party practices, websites, or services, whether or not referenced in our Services. Each third party will have its privacy practices and policies, which you should review before using them.

How and why do we collect your personal information?

Generally, most of your personal information is not collected by us but only by Google Play Store and Apple Store, where you can find our Application. This goes in particular to your personal identifying information, payment information, device information etc. Therefore, it is strongly advisable for you to check also the privacy notices at [Google Play Store Privacy Policy](#) and [Apple Store&Privacy](#).

We collect personal information you provide to us when you scan or otherwise edit your content. Any information you provide when sending your content to us in order to use our Services is **entirely voluntary**. As described in the Terms and Conditions, you should not use the Services to create, post or distribute any sensitive personal information.

We might collect personal information for our business purposes, namely, to provide and improve our Application and Services. Part of this includes compliance with applicable laws, such as responding to legal requests, enforcing this Privacy Policy and our rights, and protecting others and our Service. We use information for security purposes and to protect against harmful activity. Further, we may use personal information for debugging functionality,

auditing interactions, and internal research. Moreover, we may use information as otherwise instructed by you and with your consent.

We use AI for our Services but we do not use any automatic decision making which can harm or otherwise affect your legal rights.

For more specific information on how we use your personal information, please refer to the next section.

How do we use your personal information?

Except for the content you create on your own by using Scannerly and is stored by us (via our partners, where applicable), we collect the following information for the referenced purposes.

While placing your content on our Application, you can provide any type of content at your own responsibility and subject to the limitations set out in our Terms and Conditions. We do not collect any sensitive personal information and it is your responsibility to make sure your content does not include any information that could result in a risk to the rights and freedoms of any natural persons in the event of a data/security breach. Please find more content rules and warnings in our Terms and Conditions.

When you upload content for scanning (such as text, images, or documents) to our Application in order to access, fill out, edit, convert and download it, that content is temporarily stored during the process and used solely for the purposes of our Services. The content will be stored in your account for your convenience. You can always delete/edit the content on your dashboard.

The content you upload to our Application are used solely for the purpose of providing the requested Services. Such content is processed strictly for the execution of the Service you have requested, and is not used for any other purposes by us. As a general rule, we do not use, share, or disclose uploaded content for any reason beyond the scope of delivering the Services you have initiated. (please check "When do we disclose personal information?" hereunder as well).

Other (Non-Personal) Information we might collect - public information, aggregate information, de-identified information and/or pseudonymized information. We may collect this information at any time, from public, third party, and other sources. For example, we may share a public review that you posted about us or use aggregate information for our analytics. We may collect and use this information for any business or commercial purposes. The information will either be public information or not identifying individual users.

When do we disclose personal information?

As part of our business, we disclose information as follows and for the outlined purposes, which include business purposes to provide and improve the Services and comply with legal and contractual obligations, as well as commercial purposes, such as to market our business.

- ***Company Parties; Merger or Sale.*** We may share information with affiliated companies that are related to us under common ownership where they comply with this Privacy Policy. Such disclosure is for our business purposes, including to provide and improve our Services. Further, we may share information as part of a sale, merger, acquisition, or other change in control or entity status, either in whole or in part. We reserve the right to transfer or assign your information as part of any such transaction or investigation.

- **Service Providers and Contractors.** We share information with service providers (e.g. for payment processing, service optimization, technical support, storage etc.) that allows us to provide, maintain and improve our Services (they act as our data processors, within the meaning of GDPR). Service providers only use your information for our business purposes, in particular, to provide you with the Services. We may likewise share information with “contractors” that are not service providers but to whom we disclose information for business purposes, namely, to provide you with Services (and/or products, if applicable) that you have requested or considered.
- **Legal Process and Protection.** We may disclose information as necessary to comply with our legal obligations, such as to respond to government requests, tax and law enforcement inquiries, legal processes, subpoenas, and court orders. We may disclose information when we believe it is necessary to investigate, prevent, or respond to illegal, fraudulent, or injurious actions or security incidents that may cause harm to us, the Service, or others. We may also disclose information in good faith where necessary to investigate or enforce a violation of this Privacy Policy, our terms, or any legal rights.
- **Consent.** We may disclose information as requested or consented to by you.

How do we use automated technologies?

We use automated technologies solely to collect essential performance data, such as crash reports and diagnostics, to help us maintain and improve the stability and functionality of the app. We do not actively collect personal data beyond what is necessary for crash analysis. Any additional information — such as e.g., approximate location or device settings (e.g., currency or language preferences) — is managed by the app store platforms (Google Play or Apple App Store) and is used by us only when users have consented to allow these platforms to communicate data to third-party app developers.

Do we sell personal information?

No, we do not sell personal information.

How do we protect and transfer information?

We have implemented appropriate and reasonable technical and organizational security measures designed to protect the security of any personal information we process. However, despite our safeguards and efforts to secure your information, no electronic transmission over the Internet or information storage technology can be guaranteed to be 100% secure, so we cannot promise or guarantee that hackers, cybercriminals, or other unauthorized third parties will not be able to defeat our security and improperly collect, access, steal, or modify your information. Although we will do our best to protect your personal information, transmission of personal information to and from our Services is at your own risk. You should only access the Services within a secure environment.

How long do we retain information?

We retain personal information for the length of time necessary to fulfill the purposes outlined in this Privacy Policy, unless a different retention period is requested by you or required or permitted by law. For example, we will retain your personal information for as long as it is needed to provide you with the Service or fulfill a legal or contractual obligation. We may also aggregate, de-identify, or anonymize personal information as applicable for use in analytics, such as to analyze trends over periods of time without identifying you.

We use the following criteria to determine how long we retain personal information: (a) our relationship with you, such as if there is an open contract or account or a pending transaction or request, (b) legal obligations to retain personal information for certain purposes, such as to maintain transaction records, and (c) other obligations or considerations relating to the retention of personal information, such as (but not limited to) contract requirements, litigation holds, investigations, or statutes of limitation.

Please note that for security reasons and in compliance with legal requirements we can close your account and/or delete the personal information and content on it if there is no activity on it for a long period. Such measures are also in the interest of your security, as it is not necessary for your personal information to be stored in the event that you do not use a given Service. Further, if we suspect, in our sole discretion, that there has been a breach of your account security, we reserve the right to refuse access to the Services, terminate your account, suspend or terminate your right to use the Services, or take such other action as we deem necessary.

What are your privacy rights?

We value consumer privacy rights and strive to provide flexibility with how your personal information is used and shared. If you want to make a privacy request or have any questions, please contact us through support@scannerly.com with your name and email address or other identifier used in connection with our Services so that we can verify your request. If an authorized agent is making a request on your behalf, the agent should provide their name and contact information, such as an email address, in addition to your information.

Please note that not all these rights are absolute, and they do not apply in all circumstances. There may be situations where we cannot grant your request, for example if you make a request and we cannot verify your identity, or if you request deletion of personal information but we have a legal obligation to keep your personal information. Where we deny your request in whole or in part, we will take steps to inform you of the denial and provide an explanation of our actions and the reasons for the denial.

Applicable privacy laws have different requirements and depend on various factors, such as where you live and how much revenue or personal information is at issue. For this reason and wherever possible in this Privacy Policy we have noted the main differences in some of the major legal systems (EU and US). Generally, we adhere to the following set of privacy rights to the extent applicable and subject to any limitations authorized by law:

- **Access.** You can access and obtain your personal information and ask us for certain information, including the categories of personal information collected and used, the categories of the sources of personal information, the business or commercial purposes for collecting, selling, or sharing personal information, the categories of third parties to whom personal information is disclosed, the specific pieces of personal information collected etc.
- **Portability** Depending on your state of residence, you have the right to request the personal information that we have collected and maintained about you for you to transmit the personal information to another entity without hindrance. We will provide this information to you via a

secure method in a commonly used electronic format that, to the extent technically feasible, is readily usable and transmittable.

- **Amend.** You can amend, correct, or rectify your personal information if it is inaccurate. To exercise the right to correct, please submit a verifiable request by contacting us using the contact information at the end of this Privacy Policy or by filling out this form
- **Delete.** You can have your personal information deleted subject to certain legal limitations. To exercise the right to delete, please submit a verifiable request by contacting us using the contact information at the end of this Privacy Policy or by filling out this form.
- **Limit Use of Your Sensitive Personal Information.** You have the right to limit the processing of your personal information, in particular of any sensitive personal information. However, we do not generally collect or use your sensitive personal information.
- **Right to Opt-Out.** You have the right to opt-out of the sale/share of your personal information using cookies and other online tracking technologies. You can opt-out of these online tracking technologies by contacting us. We will also respond to recognized global opt-out preference signals where we can verify the request. You may opt-out by broadcasting an Opt-Out Preference Signal, such as the Global Privacy Control (GPC) (on the browsers and/or browser extensions that support such a signal). To download and use a browser supporting the GPC browser signal, click here: <https://globalprivacycontrol.org/orgs>. If you choose to use the GPC signal, you will need to turn it on for each supported browser or browser extension you use.
- **Right to Opt-Out of Profiling.** You may opt-out of the use of automated decision making technology if applicable. Depending on where you reside, you may have the right to opt-out of such profiling.
- **Complaints.** You have the right to make certain complaints, including for privacy concerns. We value your feedback and seek the opportunity to work with you on any issues. You have the right to no discrimination for asserting your privacy rights. You can find a list of all EU regulators at https://edpb.europa.eu/about-edpb/about-edpb/members_en#member-bg.
- **Managing Communication Preferences.** You can unsubscribe from marketing communications by following the opt-out instructions in each message or by contacting us as outlined in this Privacy Policy (please note that we may still send non-marketing messages)
- **For US users – Specific State Laws.** Several states in the US have enacted privacy laws that may apply to you, depending on the circumstances. For example, the California Consumer Privacy Act (“**CCPA**”), as amended by the California Privacy Rights Act (“**CPRA**”), governs certain California-related conduct. Under California’s “Shine the Light” law, California residents may also request certain information regarding disclosure of personal information to third parties for their direct marketing purposes. Further, if you are a California resident under the age of 18, California Business & Professions Code Section 22581 permits you to request and obtain removal of content you have publicly posted. Please note that such a request does not ensure complete or comprehensive removal of public content. For required disclosures under CCPA, please refer to the section below, titled “Additional Information for California Residents.”
- **For EU users – European Laws.** Generally, residents of the EU/EEA have the right to access the personal information (under GDPR – “**personal data**”) we hold about you and to ask that your information be corrected, updated, or erased, and the right to object to, or request that we restrict, certain processing of your information. Our legal basis for collecting and using your personal information can be your consent, performance of a contract, or where the collection and use is in our legitimate interests and not overridden by your interests or fundamental rights, as described in details in the table hereabove (section “How do we use your personal information?”). You may withdraw your consent to our collection and use of your personal information. Withdrawing your consent will not affect the lawfulness of any processing we conducted prior to your withdrawal, nor will it affect processing of your personal information used in reliance on lawful processing grounds other than consent.

- **Other Laws.** If certain other privacy laws apply to you that afford you with additional rights, please contact us to make a request, as we strive to comply with all privacy rights.

Appealing Decisions Related to Privacy Requests

Depending on your country or state of residence, you may appeal our decision to your request regarding your personal information. To do so, please contact us in any of the ways listed in the “How can you contact us?” section. We respond to all appeal requests as soon as we reasonably can, and no later than legally required.

Do we collect information about children?

No, we do not knowingly collect any personal information about children under the age of 13. If we obtain actual knowledge that we have collected such information, we will delete it from our database. We have no such information to use or to disclose to third parties or to otherwise report, including under the US Children’s Online Privacy Protection Act (“COPPA”).

How do we use or disclose sensitive information?

We do not generally use or disclose “sensitive” personal information, nor do we use sensitive information for purposes (other than those specified in the US CCPA), which provides for the following uses without additional disclosures where the information is reasonably necessary and proportionate to the use: (a) to perform certain services, such as verifying information or for analytics, (b) to verify or maintain the quality or safety of our Services, (c) to perform services or provide goods reasonably expected, (d) for short-term, transient use where there is no disclosure or profiling, and (e) to resist malicious, fraudulent, or illegal actions or to ensure physical safety.

Do we offer financial incentives for your personal information?

No, we do not offer any financial incentives for your personal information.

Do we respond to Do Not Track (DNT) Signals?

No, our Services do not currently respond to DNT requests.

How do we update this Privacy Policy?

We will update this Privacy Policy when our privacy practices change or as otherwise required or permitted by law. Each time you use the Services, the current version of this Privacy Policy will apply.

Additional Information for California Residents

California law requires us to disclose the following additional information with respect to our privacy practices. If you are a California resident, this section applies to you in addition to the rest of the privacy policy.

I. California Shine the Light

Customers who are residents of California may request information concerning the categories of personal information (if any) we disclose to third parties or affiliates for their direct marketing purposes. If you would like more information, please submit a written request to the address in the “How can you contact us?” section.

How can you contact us?

Please contact us with any questions or concerns! We can be reached at:

EAST FUSION FZCO

Building A1, Dubai Digital Park, Dubai Silicon Oasis, Dubai, United Arab Emirates

support@scannerly.com

More information

You can request further information about the way we manage the personal information that we hold by contacting us using the details set out below:

EAST FUSION FZCO

Building A1, Dubai Digital Park, Dubai Silicon Oasis, Dubai, United Arab Emirates

privacy@scannerly.com